

MUTUAL NON-DISCLOSURE AGREEMENT

Standard Commercial Proprietary Information Protections

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into and made effective as of October 14, 2026 (the "Effective Date"), by and between:

Apex Innovate LLC, a corporation organized and existing under the laws of the State of Delaware, with its principal place of business located at 500 Innovation Way, Suite 400, Wilmington, DE 19801 (hereinafter referred to as "Apex"); and

Vertex Global Solutions Inc., a corporation organized and existing under the laws of the State of California, with its principal place of business located at 100 Enterprise Drive, San Francisco, CA 94105 (hereinafter referred to as "Vertex").

Apex and Vertex may collectively be referred to as the "Parties," or individually as a "Party." Whichever Party discloses Confidential Information shall be referred to as the "Disclosing Party," and whichever Party receives Confidential Information shall be referred to as the "Receiving Party."

RECITALS

WHEREAS, the Parties wish to explore a potential business relationship, transaction, or collaborative project of mutual interest regarding cloud infrastructure integration (the "Purpose"); and

WHEREAS, in connection with the Purpose, each Party may disclose to the other Party certain proprietary, non-public, technical, financial, or business information that is confidential in nature;

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

For purposes of this Agreement, "Confidential Information" shall mean any and all information disclosed by the Disclosing Party to the Receiving Party, whether orally, visually, in writing, or in electronic or other tangible or intangible form, that is marked or designated as "Confidential" or "Proprietary," or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information includes, without limitation, business plans, customer lists, software code, product maps, technical designs, financial metrics, and trade secrets.

2. EXCLUSIONS FROM CONFIDENTIALITY OBLIGATIONS

The obligations of confidentiality and non-use set forth in this Agreement shall not apply to any information that the Receiving Party can document:

1. is or becomes publicly known through no breach or fault of the Receiving Party;

2. was rightfully in its possession prior to disclosure by the Disclosing Party without an obligation of confidentiality;
3. is rightfully obtained by the Receiving Party from a third party authorized to make such disclosure without restriction; or
4. is independently developed by employees or agents of the Receiving Party who had no access to or reliance upon the Disclosing Party's Confidential Information.

3. OBLIGATIONS OF THE RECEIVING PARTY

The Receiving Party agrees to protect the Disclosing Party's Confidential Information with the same degree of care it uses to protect its own confidential information of a similar nature, but in no event less than a reasonable degree of care. Specifically, the Receiving Party shall:

1. use the Confidential Information solely for the evaluation, discussion, and execution of the defined Purpose, and for no other commercial or competitive objective;
2. restrict access to the Confidential Information to its employees, affiliates, advisors, and legal counsel who have a strict "need-to-know" the information for the Purpose, and who are bound by confidentiality terms at least as restrictive as those contained herein; and
3. promptly notify the Disclosing Party in writing upon discovering any unauthorized disclosure, loss, or misappropriation of the Confidential Information.

4. COMPELLED DISCLOSURE

If the Receiving Party is requested or required by law, regulation, court order, or governmental legal process to disclose any Confidential Information, the Receiving Party shall, to the extent legally permissible, provide the Disclosing Party with prompt written notice of such request so that the Disclosing Party may seek an appropriate protective order or waive compliance with this Agreement. If a protective order is not obtained, the Receiving Party may disclose only that portion of the Confidential Information it is legally compelled to disclose, and shall exercise reasonable efforts to ensure that confidential treatment is accorded to the disclosed information.

5. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and shall remain in effect for a period of one (1) year, unless terminated earlier by either Party upon thirty (30) days' written notice to the other Party. Notwithstanding any termination or expiration of this Agreement, the obligations of confidentiality and non-use with respect to all Confidential Information disclosed prior to such termination or expiration shall survive for a period of three (3) years from the date of initial disclosure.

6. RETURN OR DESTRUCTION OF MATERIALS

Within fifteen (15) days following the written request of the Disclosing Party, or upon the termination of this Agreement, the Receiving Party shall, at the Disclosing Party's option, promptly return or securely destroy all documents, media, and other tangible materials containing or reflecting any Confidential Information, along with

all copies or extracts thereof. The Receiving Party shall provide written certification of compliance with this provision upon request. Archival backup copies automatically generated by system disaster recovery procedures may be retained, subject to ongoing adherence to the confidentiality terms herein until overwritten.

7. NO WARRANTY OR INTELLECTUAL PROPERTY RIGHTS

All Confidential Information is provided by the Disclosing Party on an "AS IS" basis, without any warranties of accuracy, completeness, or fitness for a particular purpose. Nothing contained in this Agreement shall be construed as granting or conferring any license, transfer, or implied rights under any patent, copyright, trademark, or trade secret of either Party.

8. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. Any legal action, suit, or proceeding arising out of or relating to this Agreement shall be brought exclusively in the state or federal courts located in Wilmington, Delaware, and each Party hereby irrevocably submits to the personal jurisdiction of such courts.

9. MISCELLANEOUS PROVISIONS

1. **Entire Agreement:** This Agreement constitutes the entire understanding between the Parties concerning the subject matter hereof and supersedes all prior or contemporaneous discussions, agreements, or representations.
2. **Amendments:** No modification, amendment, or waiver of any provision of this Agreement shall be effective unless executed in writing by authorized representatives of both Parties.
3. **Severability:** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect without being impaired.
4. **Counterparts:** This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Electronic or digital signatures shall be accepted as valid and binding.

IN WITNESS WHEREOF, the Parties hereto have caused this Mutual Non-Disclosure Agreement to be duly executed by their respective authorized officers as of the Effective Date.

For Apex Innovate LLC

For Vertex Global Solutions Inc.

By: Jane Doe

Title: Chief Executive Officer

Date: October 14, 2026

By: John Smith

Title: Chief Operating Officer

Date: October 14, 2026